

PROTECTION OF PERSONAL INFORMATION POLICY

Proaxis Solutions (Pty) Ltd — Internal Governance Document

Field

Company Name

Registration Number

Information Officer

IO Registration Reference

Document Version

Effective Date

Next Review Date

Classification

⚠ **DISCLAIMER:** This policy was prepared with AI assistance and must be reviewed by a qualified attorney before implementation. All statutory references must be verified against the current Protection of Personal Information Act 4 of 2013 and Information Regulator guidance. This document does not constitute legal advice.

1. PURPOSE AND SCOPE

1.1 Purpose

This POPIA Policy governs how Proaxis Solutions (Pty) Ltd (“Proaxis Solutions”, “the Company”, “we”) collects, uses, stores, shares, and protects personal information in accordance with the **Protection of Personal Information Act 4 of 2013 (POPIA)**.

The purpose of this policy is to:

- Ensure that all personal information processing activities comply with POPIA;
- Define the obligations of all persons who process personal information on behalf of Proaxis Solutions;
- Protect the rights and legitimate interests of data subjects;
- Establish procedures for handling data subject requests, data breaches, and regulatory interactions;
- Support the company’s commitment to professional, ethical, and legally compliant operations.

1.2 Scope

This policy applies to:

- All personal information processed by Proaxis Solutions in the course of its business;
- All directors, contractors, consultants, and service providers who process personal information on behalf of the Company;
- Personal information collected via the company website (www.proaxisolutions.co.za), client onboarding processes, email communications, and any other business channel;
- Personal information of clients, prospective clients, suppliers, website visitors, and any other natural persons whose information Proaxis Solutions processes.

This policy does not apply to information about juristic persons (companies and other legal entities), except to the extent that such information also contains personal information about natural persons.

2. LEGAL BASIS AND DEFINITIONS

2.1 Legal Basis

This policy is issued in terms of the **Protection of Personal Information Act 4 of 2013 (POPIA)**, which became fully effective on **1 July 2021**. [VERIFY: current legislative status and any amendments.]

The eight conditions for lawful processing set out in POPIA are:

1. Accountability
2. Processing Limitation
3. Purpose Specification
4. Further Processing Limitation
5. Information Quality
6. Openness
7. Security Safeguards
8. Data Subject Participation

Proaxis Solutions is committed to compliance with all eight conditions.

2.2 Key Definitions [VERIFY: exact POPIA definitions]

Term	Meaning
Personal information	Information relating to an identifiable, living natural person (or where applicable, juristic person), including name, contact details, location, identity number, financial information, and any other identifying

	information
Responsible party	The entity that determines the purpose and means of processing personal information — Proaxis Solutions (Pty) Ltd in respect of information it collects
Operator	A person who processes personal information for a responsible party — any third-party service provider that processes data on Proaxis Solutions' instructions
Data subject	The natural person to whom the personal information relates
Processing	Any operation performed on personal information, including collection, storage, use, modification, sharing, or deletion
Special personal information	Categories of particularly sensitive information (e.g., race, health, biometric data, religious beliefs, criminal record) — Proaxis Solutions does not intentionally collect special personal information

3. INFORMATION WE COLLECT AND WHY

3.1 Categories of Personal Information Collected

Category	Specific Information	Purpose
Contact information	Full name, email address, phone number	To respond to enquiries, deliver services, and communicate about projects
Business information	Company name, registration number, business size, industry	To understand client needs and personalise service proposals
Project information	Description of business challenge, budget range, timeline	To provide relevant proposals and solutions
Billing information	Banking details, invoice information	For payment processing and financial administration
Technical information	IP address, browser type, website usage data (via cookies — see Cookie Policy)	For website functionality and improvement
Communication records	Email and WhatsApp communications	For project delivery, support, and record-

keeping

3.2 Special Personal Information

Proaxis Solutions does not intentionally collect or process special personal information as defined in POPIA (including racial or ethnic origin, health information, biometric data, religious beliefs, criminal records, or sexual orientation). [VERIFY: POPIA Section 26 definition of special personal information.]

If special personal information is received inadvertently, it will be handled with appropriate additional safeguards and will not be used for any purpose beyond addressing the immediate context in which it was received.

3.3 Personal Information of Children

Proaxis Solutions does not knowingly collect or process personal information of children (persons under 18 years of age) without the consent of a competent person as required by POPIA. [VERIFY: POPIA provisions on children's information.]

The company's services are directed at businesses and organisations, not at minors.

4. HOW WE COLLECT PERSONAL INFORMATION

Personal information may be collected through the following channels:

Channel	Information Collected
Website contact form (www.proaxisolutions.co.za/contact)	Name, email, company, business size, industry, service type, challenge description, budget, timeline
Client onboarding process	Full personal and business details for service delivery
Email communications	All information contained in emails received
WhatsApp (support only)	Communications relating to technical support
In-person and telephonic engagements	Business and contact information shared during consultations
Cookies and website analytics	Technical usage data (see Cookie Policy)

5. LAWFUL BASIS FOR PROCESSING

All processing of personal information by Proaxis Solutions is conducted on one or more of the following lawful bases as provided for in POPIA [VERIFY: applicable POPIA sections]:

Basis	When It Applies
Consent	Where the data subject has given specific, informed consent to the processing
Contractual necessity	Where processing is necessary to perform a contract with the data subject or to take steps before entering into a contract
Legal obligation	Where processing is necessary to comply with a legal obligation (e.g., SARS, CIPC, Information Regulator requirements)
Legitimate interest	Where processing is necessary for Proaxis Solutions' legitimate business interests, provided these do not override the data subject's rights and interests
Protection of the data subject's vital interests	In emergency circumstances

6. DATA RETENTION

Personal information will not be kept longer than is necessary for the purpose for which it was collected.

Category	Retention Period	Basis
Enquiry / contact form submissions (non-clients)	12 months from last contact	Legitimate interest — potential future engagement
Client personal information	Duration of contract + 5 years	Legal and contractual obligation; SARS requirements
Financial records	5 years minimum	Tax Administration Act and Companies Act [VERIFY: current retention periods]
Compliance records	7 years	SARS and Companies Act [VERIFY]
Data breach records	Indefinitely (for regulatory purposes)	POPIA obligation
Employee records (when applicable)	Duration of employment + 3 years	Labour law requirements [VERIFY]

When personal information is no longer required, it will be securely deleted, destroyed, or anonymised.

7. SHARING OF PERSONAL INFORMATION

Proaxis Solutions does not sell personal information to third parties.

Personal information may be shared in the following limited circumstances:

Recipient	Reason	Safeguard
Service providers (operators)	Cloud storage (Google Drive, Notion), project management tools, accounting software	Data processing agreements or terms of service obligating POPIA-equivalent protection
SARS	Tax compliance obligations	Legal requirement
Information Regulator	Regulatory compliance and enquiries	Legal requirement
Courts	Legal proceedings	Legal requirement
Professional advisors	Legal, accounting, or compliance advice	Confidentiality obligations
Successor entities	Business restructuring or sale	With data subject notification as required

7.1 International Data Transfers

Proaxis Solutions may transfer personal information to third parties located outside South Africa as a result of using cloud-based services (including Google Drive and Notion). Such transfers will only be made where:

- The recipient is subject to a law providing adequate protection substantially similar to POPIA; or
- The data subject has consented to the transfer; or
- The transfer is necessary for the performance of a contract; or
- Other lawful basis applies. [VERIFY: POPIA Section 72 provisions on cross-border transfers.]

8. SECURITY MEASURES

Proaxis Solutions implements the following technical and organisational security measures to protect personal information:

Measure	Description
Access controls	Personal information is accessible only to authorised persons
Password protection	All devices and accounts protected by strong passwords
Cloud security	Use of established cloud platforms with

Email security	built-in security (Google Drive, Notion) Secure email practices; no transmission of sensitive data via unencrypted channels where avoidable
Device security	Company devices protected against unauthorised access
Incident response	Data breach response procedure (see Section 10)

9. DATA SUBJECT RIGHTS

Data subjects have the following rights under POPIA [VERIFY: applicable POPIA provisions]:

Right	Description
Right to access	The right to request confirmation of whether personal information is held and to obtain a copy
Right to correction	The right to request correction of inaccurate, incomplete, or outdated information
Right to deletion	The right to request deletion or destruction of personal information where processing is unlawful or no longer necessary
Right to object	The right to object to processing on grounds of legitimate interest
Right to lodge a complaint	The right to lodge a complaint with the Information Regulator

9.1 How to Exercise Rights

Data subjects may exercise any of the above rights by contacting the Information Officer:

- **Name:** Andile Khoza
- **Reference:** 2025-058837
- **Email:** willsonjohnny430@gmail.com [TO BE UPDATED: privacy@proaxissolutions.co.za]
- **Phone:** 066 213 6607

Requests will be acknowledged within 5 business days and responded to within the period prescribed by POPIA. [VERIFY: current prescribed response period.]

A Data Subject Access Request Form is available from the Information Officer on request.

10. DATA BREACH RESPONSE PROCEDURE

Proaxis Solutions has established the following procedure for responding to data breaches in accordance with POPIA Section 22. [VERIFY: current Section 22 requirements and notification obligations.]

Step 1 — Detection and Containment

Upon discovery of a potential breach: immediately contain the breach; isolate affected systems or data; preserve evidence.

Step 2 — Assessment (within 24 hours of discovery)

Determine: what information was affected; how many data subjects are affected; the likely consequences; whether the breach is ongoing.

Step 3 — Notification to Information Officer (within 24 hours)

The person who discovers the breach must notify the Information Officer (Andile Khoza, Reference: 2025-058837) immediately.

Step 4 — Notification to Information Regulator (as soon as reasonably practicable)

The Information Officer must notify the Information Regulator as soon as reasonably practicable after becoming aware of the breach. [VERIFY: current notification requirements, timelines, and notification form — www.inforegulator.org.za]

Step 5 — Notification to Affected Data Subjects (as soon as reasonably practicable)

Where the breach is likely to result in harm to data subjects, they must be notified as soon as reasonably practicable. [VERIFY: current POPIA requirements on data subject notification.]

Step 6 — Remediation and Documentation

Document the breach, the response taken, and lessons learned. Implement measures to prevent recurrence. Retain breach records.

11. AUTOMATED DECISION-MAKING

In accordance with **POPIA Section 71**, Proaxis Solutions does not make decisions that significantly affect data subjects based solely on automated processing of their personal information, without human review and involvement. [VERIFY: current Section 71 provisions.]

Where Proaxis Solutions develops AI automation solutions for clients, all contracts include a human-override clause requiring client organisations to designate a qualified human reviewer for any automated decision with significant personal consequences.

12. INFORMATION OFFICER

The Information Officer is responsible for:

- Ensuring the Company’s compliance with POPIA;
- Handling all requests from data subjects under POPIA;
- Dealing with requests and enquiries from the Information Regulator;
- Maintaining this policy and associated procedures;
- Overseeing the data breach response procedure;
- Maintaining the Data Processing Register;
- Conducting annual reviews of this policy.

Detail	Value
Information Officer	Andile Khoza
IO Registration Reference	2025-058837
Registering Authority	Information Regulator of South Africa
Contact	066 213 6607
Email	willsonjohnny430@gmail.com [TO BE UPDATED: privacy@proaxissolutions.co.za]

13. WEBSITE-SPECIFIC PROVISIONS

13.1 Contact Form

The company website (www.proaxissolutions.co.za) collects personal information via a contact form. The information collected includes name, email address, company name, business size, industry, service type, budget indication, timeline, and description of business challenge.

This information is collected with the data subject’s knowledge and is used solely to respond to enquiries and provide relevant service proposals.

A POPIA consent notice is displayed on the contact form: *“Your information is handled in accordance with POPIA.”* This will be updated to include a direct link to the full Privacy Notice. [ACTION REQUIRED: Update contact form to include link to Privacy Notice once published.]

13.2 Cookies and Tracking

The website uses cookies. See the **Cookie Policy** (published at www.proaxissolutions.co.za) for full details.

13.3 Analytics

[VERIFY AND COMPLETE: Specify what analytics tools, if any, are in use on the website. Netlify may provide analytics depending on configuration. Confirm current analytics setup and update this section accordingly.]

14. POLICY REVIEW AND UPDATES

This policy will be reviewed: - Annually (next review: June 2027); - When there are material changes to POPIA or Information Regulator requirements; - When there are changes to the company's data processing activities.

Updates to this policy will be communicated as appropriate.

ADOPTION

This POPIA Policy is adopted by Proaxis Solutions (Pty) Ltd.

Field	Detail
Director	Bongumusa Mthembu [VERIFY: confirm full legal name against CIPC records]
Information Officer	Andile Khoza (IO Reference: 2025-058837)
Date Adopted	June 2026
Director Signature	_____
Date	_____

*Proaxis Solutions (Pty) Ltd | Reg: 2025/542019/07 | IO Reference: 2025-058837
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